

Ramashrey v. State of U.P.

Allahabad High Court · Division Bench · 28 February 2018 · Writ-C No. 7104 of 2018 · **Writ disposed; clause 6.5 objection to be decided in six weeks**

HEADNOTE

The High Court declined to quash civil-court and Consumer Forum orders holding a challenge to electricity-bill correctness not maintainable, and disposed of the writ by directing the licensee officer to decide the consumer's pending clause 6.5 objection preferably within six weeks.

FACTUAL SUMMARY

Ramashrey sought quashing of the Civil Judge (Senior Division)/FTC, Azamgarh order dated 29.8.2017 dismissing Original Suit No. 154 of 2001 as not maintainable for challenging an electricity bill, and of the Consumer Forum, Azamgarh order dated 3.11.2017 rejecting a like complaint. He also sought a corrected bill on actual meter reading for 5.5.1998–20.9.2000 after credit of Rs. 34,612 already paid, and decision of his 13.2.2018 clause 6.5 objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-under-clause-6.5

HOLDING

The Court found no ground to quash the Civil Judge's and Consumer Forum's orders dismissing as not maintainable the petitioner's challenge to the correctness of the electricity bill, and disposed of the writ by directing respondent no. 2 to decide the petitioner's objection dated 13.2.2018 under clause 6.5 of the Electricity Supply Code, 2005, as expeditiously as possible and preferably within six weeks of production of a certified copy of the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND CLAIM TO A REVISED BILL ON ACTUAL METER READING FOR 5.5.1998 TO 20.9.2000 AFTER CREDIT OF RS. 34,612

Left to decision of the pending clause 6.5 objection. ¶ 1